the doj & cd
Department:
Justice and Constitutional Development
REPUBLIC OF SOUTH AFRICA

SWORN AFFIDAVIT BY INDEPENDENT TRUSTEE

I (Full names and surname) Daniel Jacobus Bantjes

ID / Passport No: 58100 45103 089

Representative of Organisation (If Applicable) .....

Registration Number (If Applicable) .....

As independent trustee I declare and undertake the following:

1. I am qualified to act as trustee and do not find myself in any of the circumstances mentioned in Section 20(2) of the Trust Property Control Act, 1988 (Act 57 of 1988), which will justify my removal and undertake to inform the Master immediately should any such circumstances arise.
2. I undertake to inform the Master should there be any changes in the capital/income beneficiaries in this Trust.
3. I undertake to furnish the Master, when requested to do so, with any information which the Master may require in connection with the affairs of the Trust.
4. That I have no family relation or connection, blood or other, to any of the existing or proposed Trustees, beneficiaries or founder of the trust.
5. That I am competent to scrutinize and check the conduct of the other appointed trustees who lack a sufficiently independent interest in the observance of substantive and procedural requirements arising from the Trust instrument.
6. I have no reason to conclude or approve transactions that may prove to be invalid, because I am knowledgeable in the law of trusts.
7. That I do not have any interest in the Trust as a beneficiary.
8. That I was never disqualified by the Trust Property Control Act, 1988 from acting as a Trustee

Signed at ……..…. on the.....day..... Month.....Year.

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TRUSTEE

I certify that on the ……..day……..Month…….Year and in my presence the deponent signed the Affidavit and declared that he/she knows and understand the contents hereof, has no objection to taking this oath and considers the oath to be binding on his/her conscience, and I further certify that the requirements of Regulation GN R1258 of 21 July 1972, amended by GN R1648 of 19 August 1977, and as further amended by GN R1428 of 11 July 1980, and as further amended by GN R774 of 23 April 1982 in terms of Section 10 of the Justices of the Peace and Commissioners of Oaths Act, Act 16 of 1963 have been complied with in all respects.

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COMMISSIONER OF OATH